



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

[SB 1786](#): artificial intelligence; content verification

KUPPER FLOOR AMENDMENT

1. Specifies that text content that is generated as a part of an interactive experience, is to be excluded from the provenance data that is created or altered by a generative AI system.
2. Makes a technical change.

KUPPER FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1786
(Reference to ARTIFICIAL INTELLIGENCE & INNOVATION Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 18, Arizona Revised Statutes, is amended by adding
3 chapter 8, to read:

4 CHAPTER 8

5 ARTIFICIAL INTELLIGENCE

6 ARTICLE 1. GENERAL PROVISIONS

7 18-801. Artificial intelligence; content verification;
8 definitions

9 A. A COVERED PROVIDER SHALL INCLUDE PROVENANCE DATA IN ANY VIDEO,
10 IMAGE OR AUDIO CONTENT ~~[OR CONTENT THAT IS ANY COMBINATION OF A VIDEO, AN~~
11 ~~IMAGE OR AUDIO CONTENT]~~ THAT IS CREATED OR MATERIALLY ALTERED BY THE
12 COVERED PROVIDER'S GENERATIVE ARTIFICIAL INTELLIGENCE SYSTEM ~~[AND THAT IS~~
13 ~~AVAILABLE TO BE SHARED WITH USERS OUTSIDE OF THE GENERATIVE ARTIFICIAL~~
14 ~~INTELLIGENCE SYSTEM. THIS SUBSECTION DOES NOT APPLY TO~~ {{TEXT}} ~~CONTENT~~
15 ~~THAT IS GENERATED AS A RESULT OF AN INTERACTIVE EXPERIENCE, INCLUDING~~
16 ~~VOICE ASSISTANT RESPONSES, VIRTUAL REALITY ENVIRONMENTS, AUGMENTED REALITY~~

1 APPLICATIONS, REAL-TIME CONVERSATIONAL ARTIFICIAL INTELLIGENCE
2 INTERACTIONS AND OTHER REAL-TIME, DYNAMIC INTERACTIONS BETWEEN A USER AND
3 A GENERATIVE ARTIFICIAL INTELLIGENCE SYSTEM].

4 B. A COVERED PROVIDER SHALL USE COMMERCIALY AND TECHNICALLY
5 REASONABLE METHODS TO MAKE THE PROVENANCE DATA DIFFICULT TO REMOVE OR
6 TAMPER WITH. THE USE OF A COMMONLY SUPPORTED TECHNICAL STANDARD FOR
7 WATERMARKING AND METADATA COMPLIES WITH THE REQUIREMENTS OF THIS
8 SUBSECTION.

9 C. THE CONTENT IS NOT CONSIDERED MATERIALLY ALTERED FOR PURPOSES OF
10 THIS SECTION IF THE ALTERATION CONSISTS OF A MINOR MODIFICATION THAT DOES
11 NOT LEAD TO SIGNIFICANT CHANGES TO THE PERCEIVED CONTENT OR MEANING OF THE
12 CONTENT.

13 D. [TO THE EXTENT THAT IT IS COMMERCIALY AND TECHNICALLY
14 REASONABLE,] A COVERED PROVIDER [IS REQUIRED TO] [MAY NOT] INCLUDE ANY
15 INFORMATION THAT RELATES TO AN IDENTIFIED OR REASONABLY IDENTIFIABLE
16 INDIVIDUAL IN PROVENANCE DATA THAT [IS INCLUDED IN] [IS IN ANY VIDEO,
17 IMAGE OR AUDIO] CONTENT CREATED OR MATERIALLY ALTERED BY THE COVERED
18 PROVIDER'S GENERATIVE ARTIFICIAL INTELLIGENCE SYSTEM [AND THAT IS SUBJECT
19 TO THE REQUIREMENTS OF THIS CHAPTER UNLESS THE COVERED PROVIDER CHOOSES TO
20 INCLUDE THE INFORMATION WHERE A USER AFFIRMATIVELY ELECTS TO INCLUDE THE
21 INFORMATION].

22 [E. THIS CHAPTER DOES NOT DO EITHER OF THE FOLLOWING:

23 1. APPLY TO ANY PRODUCT, SERVICE, INTERNET WEBSITE OR APPLICATION
24 THAT EITHER:

25 (a) EXCLUSIVELY PROVIDES {{VIDEO GAMES OR}} NON-USER-GENERATED
26 TELEVISION, MUSIC, STREAMING, MOVIE{{, VIDEO GAME}} OR INTERACTIVE
27 EXPERIENCES.

28 (b) PROVIDES FOR THE SALE OF GOODS OR SERVICES DIRECTLY TO
29 CONSUMERS THROUGH THE INTERNET AND ALLOWS CUSTOMERS TO BROWSE, SELECT AND
30 PURCHASE ITEMS VIRTUALLY.

31 2. REQUIRE A COVERED PROVIDER TO DISCLOSE ANY TRADE SECRET OR
32 CONFIDENTIAL OR PROPRIETARY INFORMATION ABOUT THE DESIGN OR USE OF AN
33 ARTIFICIAL INTELLIGENCE SYSTEM.]

34 [F.] [E.] FOR THE PURPOSE OF THIS SECTION:

35 1. "COVERED PROVIDER"[:]

36 [(a)] MEANS A PERSON OR ENTITY THAT CREATES, CODES OR OTHERWISE
37 PRODUCES A GENERATIVE ARTIFICIAL INTELLIGENCE SYSTEM THAT [HAS MORE THAN
38 ONE MILLION MONTHLY USERS AND THAT] IS PUBLICLY ACCESSIBLE WITHIN THE
39 GEOGRAPHIC BOUNDARIES OF THIS STATE TO CONSUMERS FOR PERSONAL USE.

40 [(b) DOES NOT INCLUDE ANY OF THE FOLLOWING:

41 (i) A CLOUD SERVICE PROVIDER.

1 (ii) A PROVIDER THAT DISTRIBUTES OR MAKES AVAILABLE A GENERATIVE
2 ARTIFICIAL INTELLIGENCE SYSTEM THAT IS PRIMARILY LICENSED OR SOLD FOR
3 BUSINESS TO BUSINESS PURPOSES.

4 (iii) A PRODUCT, SERVICE OR APPLICATION THAT IS PRIMARILY MARKETING
5 AND INTENDED TO FACILITATE ACCESSIBILITY FOR A PERSON WITH A DISABILITY IF
6 THE DEVELOPER TAKES REASONABLE MEASURES TO PROTECT AGAINST UNAUTHORIZED
7 USE.

8 (iv) AN INTERNET SERVICE PROVIDER.

9 (v) AN INTERNET SERVICE PROVIDER'S AFFILIATES OR SUBSIDIARIES.

10 (vi) AN INTERNET SEARCH ENGINE.]

11 2. "GENERATIVE ARTIFICIAL INTELLIGENCE SYSTEM" MEANS [TECHNOLOGY
12 THAT USES MACHINE LEARNING, INCLUDING DEEP-LEARNING MODELS, NATURAL
13 LANGUAGE PROCESSING OR OTHER COMPUTATIONAL PROCESSING TECHNIQUES OF
14 SIMILAR OR GREATER COMPLEXITY, TO GENERATE IMAGES, AUDIO, VIDEO OR OTHER
15 MEDIA] [AN ARTIFICIAL INTELLIGENCE SYSTEM THAT CAN GENERATE SYNTHETIC
16 CONTENT].

17 3. "MINOR MODIFICATION" INCLUDES ALL OF THE FOLLOWING:

18 (a) CHANGING THE BRIGHTNESS, CONTRAST OR COLOR.

19 (b) SHARPENING.

20 (c) SATURATING.

21 (d) APPLYING FILTERS.

22 (e) RESIZING.

23 (f) SCALING.

24 (g) CROPPING.

25 (h) FORMAT CONVERSIONS.

26 (i) RESAMPLING.

27 (j) DENOISING.

28 (k) REMOVING BACKGROUND NOISE IN AUDIO.

29 4. "PROVENANCE DATA" MEANS DATA THAT IS EMBEDDED INTO DIGITAL
30 CONTENT[,] [OR] THAT IS INCLUDED IN THE DIGITAL CONTENT'S METADATA [OR
31 THAT IS ASSOCIATED WITH DIGITAL CONTENT] TO VERIFY THE DIGITAL CONTENT'S
32 AUTHENTICITY, ORIGIN OR HISTORY OF MODIFICATION [AND THAT INCLUDES
33 GENERALLY ACCEPTED SECURITY BEST PRACTICES].

34 Sec. 2. Legislative findings

35 The legislature intends that section 18-801, Arizona Revised
36 Statutes, as added by this act, be broadly construed and applied to
37 promote the underlying purpose of the act, which is all of the following:

38 1. To protect individuals and groups of individuals from known, and
39 unknown but reasonably foreseeable, risks associated with artificial
40 intelligence.

41 2. To provide transparency regarding those risks in the
42 development, deployment or use of artificial intelligence systems.

43 3. To provide reasonable notice regarding the use of artificial
44 intelligence systems.

45 4. To protect the public from fraud or deception.

House Amendments to S.B. 1786

1 <<Sec. 3. Effective date
2 [This act is effective from and after February 1, 2027.]>>

3 Enroll and engross to conform
4 Amend title to conform

NICK KUPPER

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